

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Squad #6	CCRB Case #: 201508762	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/07/2015 12:35 PM	Location of Incident: Outside of § 87(2)(b)	Precinct: 25	18 Mo. SOL 4/7/2017	EO SOL 4/7/2017	
Date/Time CV Reported Wed, 10/07/2015 12:47 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/14/2015 11:12 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Darrien King	02617	936870	NARCBMN
2. DT3 Raymond Low	4743	936985	NARCBMN
3. An officer			NARCBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Sandy Marrero	02511	933967	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A.SGT Darrien King	Force: Sgt. Darrien King used physical force against § 87(2)(b)	§ 87(2)(b)
B.DT3 Raymond Low	Force: Det. Raymond Low used physical force against § 87(2)(b)	§ 87(2)(b)
C.SGT Darrien King	Force: Sgt. Darrien King used pepper spray against § 87(2)(b)	§ 87(2)(b)
D. An officer	Force: An officer hit § 87(2)(b)'s face against a pole.	§ 87(2)(b)

Case Summary

On October 7, 2015, § 87(2)(b) called the IAB command center to file a complaint, which was received at the CCRB on October 14, 2015. On October 15, 2015, the phone number that § 87(2)(b) provided to IAB was called. § 87(2)(b) answered and said that § 87(2)(b) currently has no working number. § 87(2)(b) provided § 87(2)(b)'s mailing address and § 87(2)(b)'s contact information. § 87(2)(b) arrived to the scene at the conclusion of the incident and did not witness any FADO allegations, but was provided with a cell phone video of the incident from § 87(2)(b). § 87(2)(b) emailed the video, which does not capture any misconduct, to the CCRB. The IAB case file was received on November 2, 2015 and included another video provided to IAB by § 87(2)(b). This video captures a different vantage point of the struggle between § 87(2)(b) and the officers § 87(2)(g).

Searches of the CCRB's Complaint Tracking System, COLES and the Lexis Nexis and Clear databases did not produce any additional viable contact information for § 87(2)(b). Between October 15, 2015 and October 29, 2015, three unreturned letters were mailed to him. A search of the NYC Department of Correction Inmate Tracking System revealed that § 87(2)(b) is not currently incarcerated.

On October 16, 2015, § 87(2)(b) was called provided a brief phone statement. § 87(2)(b) said he wished to confer with his attorney prior to participating in this complaint due to his pending criminal charges. He agreed to call the CCRB the following week, but failed to do so. Between October 16, 2015 and October 28, 2015, § 87(2)(b) was called five times at his two phone numbers and a total of nine voicemail messages were left for him. Between October 15, 2015 and October 26, 2015, two unreturned letters were mailed to § 87(2)(b) and two unreturned emails were sent. A search of the NYC Department of Correction Inmate Tracking System revealed that § 87(2)(b) is not currently incarcerated.

§ 87(2)(g)

Squad: #6

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date